



SAP Partner Code of Conduct

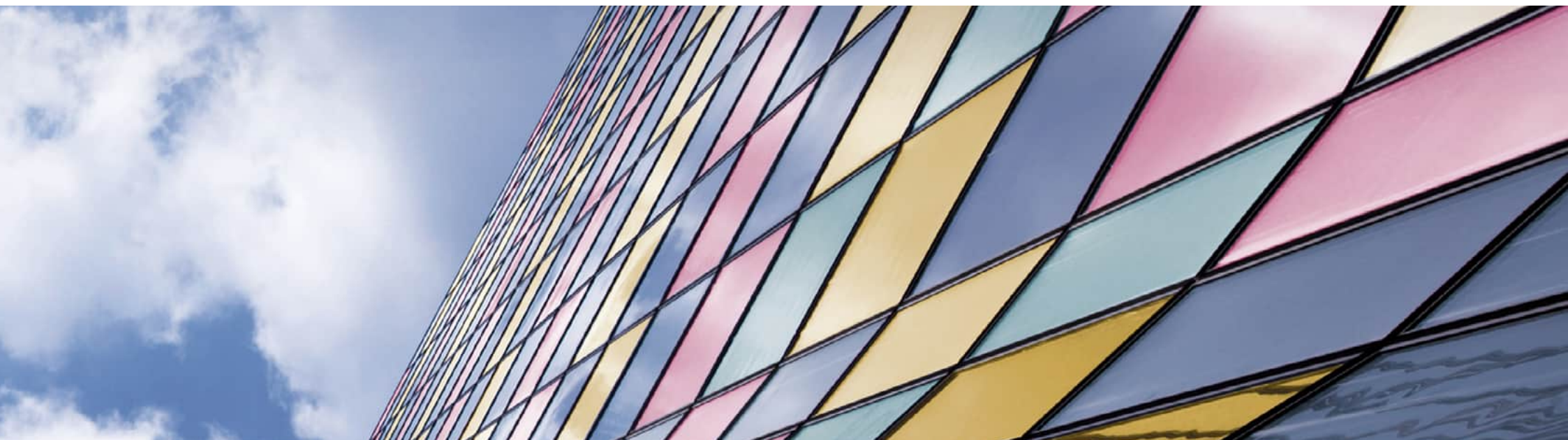
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Integrity and sustainability constitute a cornerstone for the way in which SAP does business. SAP expects you, as a Partner, to do business in the same manner.

The following guidelines set forth the **framework of acceptable conduct** SAP expects from its Partners.

These guidelines are based on SAP's commitment to integrity and sustainability as expressed in our internal Global Code of Ethics and Business Conduct, which is mandatory for all our employees. All business transactions through a member of the SAP ecosystem must not only be in full compliance with this **SAP Partner Code of Conduct** and all applicable laws, rules, regulations, and policies but also go beyond purely legal requirements.

SAP is depending on Partners with a reputation as serious business professionals who behave fairly, ethically, and correctly in all business activities. For Partners that have employees contracted to work directly on SAP products and projects, these guidelines must be reviewed with all employees and subcontractors working on SAP matters.

We expect our employees and our Partners to conduct themselves in a safe manner, to refrain from any action that may be considered a conflict of interest, and to treat others with respect and fairness while working on behalf of SAP. We regard our Partner base as a critical and necessary extension of our operations and future success, and we thank you for continuing to make integrity and sustainability a top priority as you work with SAP.

Definitions

The term “**Partner**” as used in the following policy document comprises all technology; solution; service (consulting, implementation, system integration, hosting, education); channel (value-added reseller, distributor, and other reseller); and all other partners.

These partners are collaborating with SAP and are part of any SAP Partner program after having been both:

- Offered global or local partnership by SAP in any strategic business area or for any customer need in all market segments
- Nominated as a Partner by SAP

The term Partner also includes employees of the Partner.

Third parties that deliver goods and services to SAP (“**Suppliers**”) are not subject to this SAP Partner Code of Conduct, but to the SAP Supplier Code of Conduct.



The term “**SAP**” as used in the following policy document refers to SAP SE and all international SAP subsidiaries that act as local contracting party for agreements with Partners.

1 Compliance with Laws, Rules, Regulations, and Policies



1.1 General

As a Partner, you agree to abide by the terms of this Code and acknowledge that compliance with this Code is required to maintain your status as an SAP Partner. You agree that all business conducted on behalf of SAP shall be accomplished in full compliance with applicable laws, rules, regulations, and policies. Non compliance with the Code may result in consequences including but not limited to fines, penalties, claw backs, suspension and terminations. If local laws are less restrictive than the principles set forth in this Code; Partners are expected, at a minimum, to comply with the Code. If local laws are more restrictive than this Code, Partners are expected, at a minimum, to comply with applicable local laws.

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1.2 Anti-Corruption Laws

Partners shall not make, authorize, or offer any bribes, kickbacks, or payments of money or anything of value to anyone for the purpose of obtaining or retaining business or influencing any other favorable business decision that is related in any way to SAP. These entities include:

- Officials,
- Employees, and
- Representatives

of any government or public or international organization, or any other third party (public or private sector).

This includes giving money or anything of value to anyone where there is reason to believe that it will be passed on to a government official or the decision maker at a private sector customer or potential customer for this purpose.

It is prohibited to invite public sector customers to hospitality events. These customers include government officials; public sector employees; employees of state-owned enterprises; employees of a department or agency of the government (military, public schools, scientific research bodies established by the government); representatives

of political parties; and so on. For reference, hospitality events have an agenda that is not principally business-focused.

Partners are required to comply with the German Criminal Code, the U.S. Foreign Corrupt Practices Act, the UK Bribery Act, and all applicable local anti-bribery laws.





1.3 Offering/Accepting Business Courtesies

Partners should use discretion and care to ensure that any expenditure, such as gifts or meals, offered to or received by any SAP employee or third party is in the ordinary and proper course of business and could not reasonably be construed as a bribe or improper inducement. Business courtesies must not be designed or appear to be designed to influence the recipient and secure unfair preferential treatment.

A general guideline for evaluating whether a business courtesy is appropriate is whether public disclosure would be embarrassing to the Partner or SAP. Employees of Partner are permitted to offer and accept meals and other business entertainment from third parties in connection with SAP business only when such business courtesy:

- Serves a bona fide business purpose, and
- Does not inappropriately influence, or appear to influence, any business decision, and
- Is not offered during any pending bidding or negotiation process, and
- Is given openly and transparently, and
- Is not unlawful or contrary to ethical business principles, local business customs, or the customer, vendor, competitor, or partner's company policy

Generally, meals or business entertainment must be reasonable, appropriate, and consistent with applicable local laws. SAP recommends that they should not exceed 50 euros per person. However, the Partner shall take into account local rules and habits which may lead to a stricter limit as recommended above.

1.4 Anti-Trust and Competition Laws

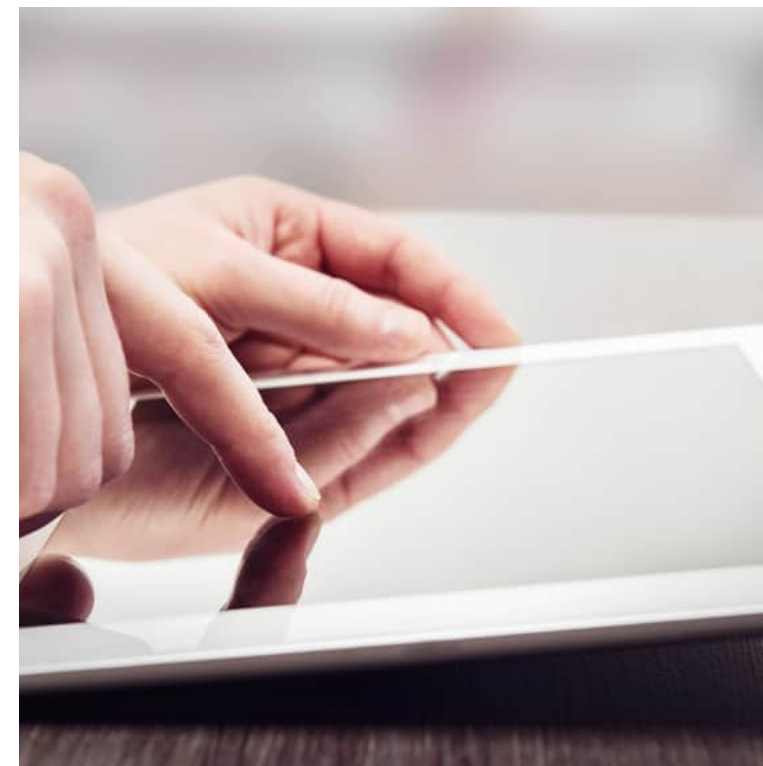
Anti-trust and competition laws are designed to protect consumers and competitors against unfair business practices and promote and protect healthy competition. SAP is committed to observing the applicable antitrust and competition laws of all nations or organizations, and expects its Partners to comply with all applicable antitrust and competition laws as well. Antitrust or competition laws vary from country to country, but generally, such laws prohibit agreements or actions that unreasonably restrain trade, are deceptive or misleading, or unreasonably reduce competition.

It is unlawful for the Partner to agree with a customer, vendor, competitor, or other business partner to avoid doing business with, or to refuse to deliver goods or provide services to, any other customer, vendor, competitor, partner, or service provider. (This is considered a boycott.)

All forms of price fixing among market participants are forbidden. Generally, price fixing is defined as: “A verbal or written agreement between participants on the same side (supplying) in a market to buy or sell a product, service, or commodity only at a fixed price, or maintain the market conditions by controlling supply and demand such that the price is maintained at a given level.”

Partners must not accept, read, or use information about products and plans of market participants which is identified or identifiable as confidential information unless the Partner is authorized by the other market participant to do so.

Also, Partners must not talk with market participants about SAP internal matters, such as pricing and conditions of sale, costs, overviews of the market, organizational processes, or other confidential information, from which other market participants could draw competitive advantage over SAP.





1.5 Export Laws

Certain exports require prior authorization and/or licenses from the export control authorities or may be completely prohibited. Authorization and license requirements are dependent upon:

- A product's technical characteristics (the product is classified as dual-use good or has military-specific functionalities)
- The destination (the country of destination is subject to trade sanction(s))
- The end user (end user is subject to trade restrictions ("block-listed") and
- The end use (the software is intended for a military end use in a crisis area)

An export is a delivery of goods across borders, regardless of the method used for the transfer. For example, software can be shipped on DVDs, hand-carried on a memory stick, e-mailed, or uploaded to or downloaded from an Internet site. In each case, the transaction is considered an export in the legal sense.

SAP requires Partners to comply fully with these laws. Failure to comply could result in criminal fines for the involved persons or corporate bodies and administrative fines for the company, as well as the loss or restriction of export privileges.

1.6 Controversial Weapons Policy

Partners acknowledge that SAP has issued the [SAP Global Controversial Weapons Commitment Statement](#) by which SAP commits to refrain from conducting business with or engaging with companies involved in the production or distribution of controversial weapons. These weapons include anti-personnel mines; cluster munitions; incendiaries (e.g., napalm); and biological, chemical, and nuclear weapons.

SAP's commitment will be relevant for retaining partnership status with SAP and for order acceptance by SAP. Please contact your Partner Manager or [Partner Support](#) for any additional information.

1.7 Securities and Insider Trading Laws

Partners are expected to comply with applicable insider trading and securities laws governing transactions in the securities of SAP. Securities include common stocks, bonds, options, future contracts, and other financial instruments. Partners that possess or have access to material, non-public information gained through their work with SAP may not use that information to trade in SAP securities or the securities of another company to which the information pertains.

The management and/or the directors of the Partner shall ensure that its employees do not engage in any other action to take advantage of, or pass on to others, material information gained through work with SAP until a reasonable time after full public disclosure has occurred.

These restrictions also apply to family members, friends, and associates.

Material information includes any information that a reasonable investor would consider important in a decision to buy, hold, or sell securities. Such information might include financial and key business data; merger, acquisition, or divestiture discussions; award or information related to the cancellation of a major contract; changes in key management; forecasts of unanticipated financial results; significant litigation; and/or gain or loss of a substantial customer or Partner.

1.8 Valid Due Diligence Status

SAP Partners are expected to comply fully with any information requests required by SAP to carry out due diligence checks when joining any SAP partner program and any subsequent due diligence renewal requests. Failure to supply information or not meeting due diligence requirements may lead to application rejection, delays, or inability for SAP to accept sales leads or process related orders and payments, or contract termination, depending on the partner status. Partners are also requested to complete any compliance training available based on their partner type.



2 Business Conduct

SAP expects Partners to compete fairly and ethically for all business opportunities. Partners' employees involved in the sale or licensing of products and services and the negotiation of agreements and contracts to SAP must ensure that all statements, communications, and representations to SAP are accurate and truthful.

2.1 Financial Integrity

Accurate and reliable financial and business records are of critical importance in meeting SAP's financial, legal, and business obligations. Partners should not have any false or inaccurate entries in their accounting books or in any records related to SAP for any reason. Partners' business records must be retained in accordance with record retention policies and all applicable local laws and regulations.

2.2 Conflicts of Interest

The term "conflict of interest" describes any circumstance that could cast doubt on the Partner's ability to act with total objectivity regarding the supply of products and services to SAP. SAP wants its Partners' services to be free of any conflicting interests.

A conflict of interest also exists where there is a choice between acting in a personal interest (financial or otherwise) or in the interest of SAP. While engaged in SAP-related work, you must exercise reasonable care and diligence to avoid any actions or situations that could result in a conflict of interest. SAP expects Partners to prevent or immediately disclose a conflict of interest or the appearance of a conflict of interest as soon as possible to the SAP's Office of Ethics and Compliance (OEC).



3 Human Rights and Labor Standards

SAP expects partners to respect human rights understood as the principles expressed in the International Bill of Human Rights and in the eight International Labor Organization core conventions. This means, Partners should respect their employees' or contractors' fundamental rights at work, such as:

- Safe and healthy workplace
- Freedom from modern slavery or forced labor
- Freedom from child labor
- Compliance with local working hours and rest-break requirements
- Adequate living wages
- Humane treatment
- Nondiscrimination
- Freedom of association

Partners are also expected to identify, assess, prevent, and minimize human rights risks in their value chains. In addition, they should offer employees and external parties a means to raise concerns of misconduct tied to human rights and labor standards.





4 Environmental Protection

To the extent relevant, Partners should identify, assess, prevent, and minimize environmental risks in their own operations and supply chain.

This means, for example, that they should maintain processes to safely dispose of hazardous waste and avoid soil contamination, water or air pollution, harmful noise emissions, and excessive water consumption to minimize adverse effects on the environment and community while safeguarding the health and safety of the public.

All required environmental permits and registrations are to be obtained, maintained, and kept current, and their operational and reporting requirements are to be followed.

5 Compliance Management System

Partners shall adopt or establish a compliance management system whose scope is related to the content of this Code. Partners agree to provide information and evidence tied to their Compliance Management Systems to SAP, whenever requested as part of our diligence processes or Partner audits.

The management system shall be designed to ensure:

- Compliance with applicable laws, rules, regulations, policies, and customer requirements related to the Partner's operations and products;
- Conformance with this Code
- Identification and mitigation of operational risks related to this Code; and
- Documentation of the Compliance Management System for auditing purposes

Failure to comply with this requirement may result in consequences including but not limited to claw backs, suspension, and terminations.



6 Responsibility for Company Resources

Partners are expected to safeguard SAP resources while performing work for SAP. These resources include property; assets; intellectual property; company technology assets (network, phone, Internet, software applications, and e-mail systems); trade secrets; and other confidential, proprietary, or sensitive information. Use of SAP resources without proper approvals or for anything other than to perform SAP work is strictly prohibited. Intellectual property rights of SAP must be protected.

6.1 Confidential Information

SAP confidential or sensitive information must be protected. Partners may possess only such information as they need to perform work activities. Partners should not use this information for gain or advantage, and should never share this information without appropriate SAP approval. All confidential or sensitive information obtained by a Partner must have documented authorization in place. Inappropriate use of SAP Internet or e-mail is strictly prohibited.

Partners are expected to safeguard confidential information by not reproducing copyrighted software, documentation, or other materials without permission, and not transferring, publishing, using, or disclosing it other than as necessary in the ordinary course of business or as directed or authorized. SAP may require Partners to sign non-disclosure agreements for specific and confidential projects.

6.2 Trademarks

Partners are expected to respect SAP's trademarks. For example., if a Partner is granted permission to use the SAP logo, the Partner must use the logo exclusively in SAP's interest, specifically, only to identify SAP products and in advertising such products. Partners are not permitted to grant sublicenses.



6.3 Data Privacy

Partners should observe applicable data privacy standards. Materials that contain confidential information or which are protected by privacy standards should be stored securely and shared only internally with those employees with a “need to know.” For example, SAP confidential information may include, but is not limited to, software and other inventions or developments (regardless of the stage of development) developed or licensed by or for SAP, marketing and sales plans, competitive analyses, product development plans, pricing, potential contracts or acquisitions, business and financial plans or forecasts, and prospect, customer and employee information. However, the terms of any confidentiality provision in the agreement between the Partner and SAP will govern confidentiality terms between the parties.

6.4 Communication

Partners must not commit SAP to future functionality toward third parties.

Outside the scope of the relevant SAP Partner program, Partners should not provide SAP-related statements or speak and act on behalf of SAP toward third parties unless specifically and explicitly authorized by SAP to do so.

This also includes the obligation of the Partner to protect SAP’s reputation and to avoid unauthorized communication by its employees on behalf of the Partner with reference to SAP.

6.5 Monitoring

SAP retains the right to monitor its assets and work environments in compliance with applicable federal, state, and local law. We monitor to promote safety, prevent criminal activity, investigate alleged misconduct and security violations, manage information systems, and for other business reasons.



7 Reporting Concerns and Raising Questions

The standards of conduct described in this SAP Partner Code of Conduct are critical to the ongoing success of SAP's relationship with its Partners. If you have questions or concerns about compliance or ethics issues or want to report illegal or unethical activities:

- Access [Speak Out at SAP](#) to report any concerns confidentially and anonymously, if desired, through an online form or use the appropriate contact number for your region.
- Send an e-mail to ethicalbusiness@sap.com. Your message will be routed to the appropriate representative for assistance or guidance as necessary.

All matters raised in good faith through these reporting lines will be handled on a confidential, non-retaliatory basis. All information will be maintained as confidentially as is practical, considering the need to conduct an investigation and implement remedial measures.



